

VISP — Terms and Conditions

Verified Independent Service Provider Platform | Effective Date: May 01, 2026 | Version 1.0

Important Notice: This is a first-draft Terms and Conditions document intended for early review. It must be reviewed and finalized by qualified legal counsel before public release. By continuing to use VISP, you agree to be bound by the terms below.

1. Introduction

Welcome to VISP ("VISP", "we", "us", or "our"). VISP operates a digital marketplace platform (the "Platform") that connects individuals and businesses seeking services ("Clients") with independent service providers ("Service Providers"). VISP is a marketplace and technology service. We are not the employer, agent, contractor, or representative of any Service Provider, and we do not perform any services listed on the Platform.

These Terms and Conditions ("Terms") govern your access to and use of the VISP mobile application, website, and related services. By creating an account or using the Platform, you acknowledge that you have read, understood, and agree to be bound by these Terms. If you do not agree, do not use the Platform.

2. Eligibility

- You must be at least 18 years of age and capable of forming a legally binding contract.
- You must reside in Canada and be legally permitted to use marketplace services in your province or territory.
- Service Providers must be legally entitled to perform the services they offer, including holding all required licenses, permits, and certifications where applicable.
- You agree to provide accurate, current, and complete information during registration and to keep that information up to date.

3. Service Provider Tiers and Verification

VISP uses a tiered verification system to help Clients understand the level of trust and qualification associated with each Service Provider. Tier assignment is determined by VISP at its sole discretion based on the information and documentation provided.

Tier 1 — New / Unverified

Newly registered accounts that have not yet completed full verification. Tier 1 accounts have limited access to job categories and may be subject to additional monitoring.

Tier 2 — Verified General Services

Service Providers who have completed identity verification and background screening. Tier 2 accounts may offer general, non-regulated services such as cleaning, painting, moving assistance, dog walking, car washing, and similar activities.

Tier 3 — Licensed / Regulated Services

Service Providers who have submitted, and had verified, all licenses, certifications, and permits required to legally perform regulated services. Examples include licensed electrical work, plumbing, regulated cosmetic procedures (such as tattooing), and similar professions where a license is required by law. Tier 3 access is granted only after license verification is complete.

Tier 4 — Restricted (Not Permitted)

Tier 4 covers emergency, high-risk, and otherwise prohibited activities. VISP does not facilitate Tier 4 services. If you require emergency assistance, please contact 911 or your local emergency services immediately. VISP is not an emergency-response service.

4. Prohibited Services and Conduct

The following are strictly prohibited on the Platform:

- Any illegal activity or service that violates Canadian federal, provincial, or municipal law.
- Emergency services, medical treatment, or life-safety services (please contact 911).
- Sexual services, escort services, or any form of adult-for-hire activity.
- Services requiring a license or certification that the Service Provider does not hold.
- Harassment, threats, hate speech, discrimination, or any abusive conduct toward other users or VISP staff.
- Soliciting Clients or Service Providers to transact outside of the Platform to circumvent fees or oversight.
- Misrepresenting your identity, qualifications, license status, or insurance coverage.
- Creating multiple accounts, manipulating ratings, or using bots or automated tools.

VISP reserves the right to suspend or terminate any account, remove listings, or refuse service at our sole discretion if we believe these Terms have been violated.

5. VISP's Role as a Marketplace

VISP is a marketplace, not a service provider. VISP does not employ, supervise, or direct Service Providers. Service Providers are independent contractors who set their own availability, methods, and pricing within the limits permitted by the Platform. The contract for any service is formed directly between the Client and the Service Provider.

While VISP performs identity verification, background screening, and license checks where applicable, verification is a process of reasonable diligence and is not a guarantee of skill, character, performance, safety, or outcome. Clients are responsible for evaluating Service Providers and the suitability of any service before booking.

6. Bookings, Payments, and Fees

- All payments must be processed through the Platform using our payment processor, Stripe. Off-platform payments are prohibited and not protected by these Terms.
- VISP charges a service fee (commission) on each transaction. The fee structure is disclosed in the Platform and may be updated from time to time with reasonable notice.
- Service Providers receive payouts via Stripe, subject to Stripe's terms, processing times, and verification requirements.
- Applicable taxes (including GST/HST/PST/QST) are the responsibility of the party legally required to collect and remit them. Service Providers acknowledge that VISP does not withhold income tax on their behalf.
- Refunds, cancellations, and chargebacks are governed by VISP's Refund and Cancellation Policy, which forms part of these Terms.

7. Reviews, Ratings, and Dispute Resolution

Clients and Service Providers may rate and review each other after a job is completed. Reviews must be honest, lawful, and free of personal attacks, discriminatory language, or confidential information.

If a dispute arises regarding a completed or attempted service, both parties are expected to participate in VISP's dispute resolution process, which may include:

- Submitting before-and-after photos of the worksite.
- Engaging in a moderated chat between the Client, the Service Provider, and a VISP representative.
- Providing receipts, communications, or other relevant evidence requested by VISP.

VISP will review the evidence in good faith and may issue refunds, withhold payouts, or take account-level action. VISP's decisions in dispute resolution are final at the platform level but do not waive any legal rights either party may have outside the Platform.

8. Limitation of Liability

To the fullest extent permitted by applicable law, VISP, its affiliates, officers, directors, employees, and agents are not liable for:

- The acts, omissions, conduct, quality of work, or injuries caused by any Service Provider or Client.
- Damage to property, personal injury, financial loss, or any consequential damages arising from a service booked through the Platform.
- Disputes between Clients and Service Providers regarding the scope, quality, or timing of services.
- Misrepresentations made by users in their profiles, listings, or communications.
- Any loss caused by Platform downtime, technical errors, or third-party service failures (including Stripe).

Verification badges, tier indicators, and reviews are informational only. They are not guarantees of safety, competence, or outcome. Clients use the Platform at their own risk and are encouraged to verify credentials independently for any high-value or specialized engagement.

Insurance: VISP strongly recommends that Service Providers carry their own liability insurance appropriate for the services they offer. Service Providers are solely responsible for any insurance, bonding, or coverage required by law or prudent business practice.

9. Indemnification

You agree to indemnify, defend, and hold harmless VISP and its affiliates from any claims, damages, liabilities, losses, costs, or expenses (including reasonable legal fees) arising out of or related to: (a) your use of the Platform; (b) your violation of these Terms; (c) your violation of any law or third-party right; or (d) any service you offer, perform, or receive through the Platform.

10. Suspension and Termination

VISP may suspend or terminate your account at any time, with or without notice, if we reasonably believe you have violated these Terms, posed a safety risk, or engaged in fraud. You may close your account at any time through the Platform. Upon account deletion, your data will be handled in accordance with our Privacy Policy.

11. Intellectual Property

All Platform content, including logos, designs, software, and trademarks, is owned by VISP or its licensors. You receive a limited, non-exclusive, non-transferable license to use the Platform solely as intended. You retain ownership of content you submit (such as photos and reviews) but grant VISP a worldwide, royalty-free license to use, host, display, and distribute that content in connection with operating the Platform.

12. Governing Law and Jurisdiction

These Terms are governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein, without regard to conflict-of-laws principles. The parties submit to the exclusive jurisdiction of the courts located in Ontario for any dispute that cannot be resolved through VISP's internal dispute resolution process, subject to any non-waivable consumer-protection rights you may have in your home province.

13. Changes to These Terms

We may update these Terms from time to time. Material changes will be communicated through the Platform or by email at least 14 days before they take effect, where reasonably practicable. Continued use of the Platform after the effective date constitutes acceptance of the updated Terms.

14. Contact Us

Questions about these Terms can be sent to **support@vispapp.com** (or such other address as VISP may publish on the Platform).